

PAUL v DHALIWAL

23CV46672

PLAINTIFF'S MOTION TO COMPEL PRODUCTION OF DOCUMENTS; PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES – SET ONE; REQUEST FOR SANCTIONS

Plaintiff, Heather S. Paul ("Paul") on her own behalf and behalf of all other Subway employees, filed the Class Action Complaint for failure to pay minimum wages, provide rest and lunch periods, maintain accurate wage statements, pay wages upon termination, reimburse expenses, theft, conversion, unfair employment competition, and Private Attorney General Action ("PAGA") against Defendant Jagiwan S. Dhaliwal dba Subway Sandwiches and Wraps and Subway Dhaliwal Arnold ("Defendant"). Plaintiff served discovery and has now filed motions to compel responses to requests for production of documents and further responses to special interrogatories. The motions are similar in form and substance and accordingly, the court addresses the motions in tandem. Plaintiff

I. Facts and Procedural Background

Plaintiff worked as a sandwich artist/crew member for Defendant's Subway restaurant located at 51 N. Main Street, Angels Camp, California 95222. Plaintiff alleges that Defendant additionally owns Subway restaurants in Arnold and Jackson. Plaintiff brings this action on behalf of herself and others similarly situated in a potential class action, with the class defined as:

All current and former hourly, non-exempt employees of Defendant in California at any time during the period commencing on the date that is four (4) years prior to the filing of this Complaint and continuing through the present date (the "Class Period")."

(b) "All hourly, non-exempt employees of Defendant in California who left the employ of Defendant at any time during the period commencing on the date that is within one (1) year prior to the filing of this Complaint and continuing through the present date (the "Class Period")

On October 18, 2024, Plaintiff served a Request for Production of Documents, Set One, (“RPD”) and Special Interrogatories, Set One (“SROGS”) via electronic service. Defendant’s responses were originally due on November 21, 2023. Plaintiff granted a thirty day and then a sixty day extension. The responses to Plaintiff’s Request for Production of Documents, Set One, were originally due on November 21, 2023; plaintiff granted thirty day and then sixty day extensions. Thereafter, Plaintiff granted two more extensions of fourteen days and ultimately a seven day extension on February 29, 2024. Upon the due date, March 7, 2024, Defendant served responses. However, the production of documents was conditioned on Plaintiff’s agreement to a protective order. Plaintiff asserts that despite promptly agreeing to that protective order, she never received any responsive documents. Plaintiff further asserts that the responses to the SROGS were incomplete or evasive.

On March 8, 2024 Plaintiff’s counsel emailed Defendant’s counsel and reiterated the agreement to the protective order and urging Defendant to serve the outstanding documents. Plaintiff asserts that Defendant’s counsel did not respond to her counsel’s attempts to meet and confer and as of the date of this motion, Defendant has failed to serve any documents in response to the RPD and has failed to respond adequately to the SROGS.

II. Legal Standard

CCP Section 2031.300 provides that when a party fails to respond to a demand for production of documents, the party to whom the demand is directed waives all objections. Here, plaintiff contends no responsive documents have ever been produced.

Where responses to interrogatories have been served but the requesting party believes that they are deficient because the answers are evasive or incomplete, or, because an objection is without merit, that party may move for an order compelling a further response. (Code Civ. Proc. § 2030.300(a).)

Both motions must be accompanied by a meet and confer declaration in compliance with Code Civil Procedure section 2016.040. (Code Civ. Proc. § 2030.300(b); 2031.310(b)(2).) Counsel for the Plaintiff did attempt to meet and confer but the parties were unable to informally resolve the dispute. (Declaration of Thomas Schelly (“Schelly Decl.”) ¶¶ 5-9.) Thus, the Court finds that Plaintiff’s meet and confer efforts were sufficient and this requirement is satisfied.

III. Discussion

A. Discovery Dispute

The primary issue in this discovery dispute is Plaintiff's request for information related to the Potential Class Members. According to the Defendant's Responses to the SROGS, there were thirty two (32) employees who were employed on an hourly wage basis during the Class Period and there are eleven (11) current employees. Thus, the number of individuals whose information is at issue is relatively small. Defendant nonetheless has objected, in part, to the RPDs and SROGS as unduly burdensome or overly broad. The primary objection, however, to both the SROGS and RPDS is the Defendant's concern that disclosing the names, contact information, and personnel records of Potential Class Members implicates serious privacy concerns.

In response to RPDs and SROGs that seek the identity, contact information, personnel records and communications with or complaints made by Potential Class Members, Defendant gave nearly identical responses. To each such discovery request, Defendant objected on the grounds that the request was vague, ambiguous, or implicated privacy rights and then stated:

Notwithstanding said objections, consistent with them, and without waiving them, Defendant provides the following response: Subject to the implementation of an appropriate protective order and/or implementation of a Belaire-West procedure, Defendant will supplement its response and provide the requested information.

In response to this, Plaintiff offered Defendant an opportunity to provide its own version of an acceptable protective order by April 1, 2024, and offered an extension of time in which to complete the protective order if needed. (Schelly Decl. Ex. 4, Email dated 3/25/24.) On April 1, 2024, Plaintiff's counsel sent a follow up email. (*Ibid.*) On April 3, 2024, Defendant's counsel sent a proposed protective order with a request for Plaintiff to make any suggested changes and return it for review. On April 4, 2024, Plaintiff's counsel made suggested changes and returned it for review. On April 18, 2024, Plaintiff's counsel followed up on to see if the protective order was approved and apparently no response was provided.

In response to RPD Nos. 19-21, 24, 39-41, 43-47, and 49-50 which seek documentation related to Defendant's various policies with regards to compensation or meal and rest breaks, training materials provided to Plaintiff, and any statements made by former employees related to wages, meal/rest breaks or policies of Defendant, Defendant gave nearly identical responses, objecting on the grounds the request was overbroad or unduly burdensome, sought attorney work product, or called for a legal conclusion and then stated:

Notwithstanding and without waiver of objections, the responding party responds as follows: Defendant is unable to comply with this request, as to its knowledge, documents responsive to this request never existed.

Plaintiff argues that all of Defendant's responses are deficient, if not completely absent. Plaintiff asserts that these requests seek discoverable information that is necessary to understand the nature and extent of the violations that would support the class claims. Defendant opposes the motion on the grounds that the discovery sought implicates important privacy concerns and asserts that if the Court finds the information discoverable, then it should be pursuant to an Opt-In procedure.

Courts construe the discovery statutes broadly. (*Flagship Theatres of Palm Des., LLC v. Century Theatres, Inc.* (2011) 198 Cal.App.4th 1366, 1383.) "All doubts about discovery are resolved in favor of disclosure." (*Glenfed Dev. Corp. v. Superior Court (National Union Fire Ins. Co. of Pittsburgh, Penn.)* (1997) 53 Cal.App.4th 1113, 1119.) A party objecting to discovery bears the burden of justifying its objections. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.) Similarly, the burden is on the defendant to demonstrate that disclosure is inappropriate. (*Babcock v. Superior Court* (1994) 29 Cal.App.4th 721, 727-728.)

There is generally good cause for the type of discovery that Plaintiff seeks. As to Plaintiff's own time sheets, wages, and other employment documents, Defendant's objections are meritless. The requests seek Plaintiff's own personnel documents for the limited time period of her employment.

Documents showing the contact information for Potential Class Members, the hours worked by and the wages paid to Potential Class Members are directly relevant to the claimed wage and hour violations. First, " 'contact information' regarding the identity of potential class members is generally discoverable, so that the lead plaintiff may learn the names of other persons who might assist in prosecuting the case." [citation]" (*Belaire-W. Landscape, Inc. v. Superior Court*, 149 Cal.App.4th 554 (Cal. Ct. App. 2007) (*Belaire-West*). Such information would tend to prove or disprove Plaintiff's PAGA claim and will allow Plaintiff to evaluate the merit of her claims. (Cal. Code Civ. Proc. § 2017.010 ["discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter"].) The legitimate concerns about privacy can be addressed through the *Belaire-West* procedure, which Defendant already agreed would be appropriate in its discovery responses. Despite Plaintiff's attempts at obtaining a protective order or to employ the *Belaire-West* procedure, Defendant has failed to properly respond.

Defendant requests that if the Court grants the motions to compel, the Court should require an Opt-In procedure rather than an Opt-Out procedure. The Court in *Belaire West* examined this very issue and determined that the Opt-Out procedure adequately protected the privacy interests of employees, while also serving Potential Class Member's interests, stating:

While it is unlikely that the employees anticipated broad dissemination of their contact information when they gave it to Belaire-West [the employer], that does not mean they would wish it to be withheld from a class action plaintiff who seeks relief for violation of employment laws. (*Belaire West*, *supra*, 149 Cal.App.4th at 561.)

An Opt-Out procedure that requires written notice of the proposed disclosure to all current and former employees, and offers them an opportunity to object to the release of their contact information, is sufficient to protect any privacy interests. (*Id.* at 562.) This procedure allows a targeted approach that offers inclusion to any Potential Class Member. In contrast, Defendant's Opt-In request would place the onus on individuals to take proactive steps to join the litigation, which may very well result in forfeiture of their individual rights as Potential Class Members.

Accordingly, Plaintiff's motion for further responses to the SROGS is **GRANTED**. The motion for further response to the RPDs is **GRANTED IN PART**. As regards RPD No. 50, which seeks all documents relied upon by the Defendant in making its Answer, the Court agrees that this may implicate attorney work product and that objection is sustained. Defendant is ordered to disclose those documents which do not implicate privilege or work product.

Within 10 days of this order, Defendant is to respond to Plaintiff's proposed changes to the protective order and Belaire-West notice and is ordered to follow an Opt-In procedure in said notice. Thereafter, Defendant is to provide code compliant further responses to all RPDs, with limitation on RPD 50 for any work-product or privileged material, within 30 days of the signed protective order. Defendant is to provide code-compliant further responses to all SROGs within 30 days of the signed protective order.

B. Sanctions

Pursuant to CCP. §§ 2030.300(d) and 2031.310(h), the court shall imposed a monetary sanction against any party, person, or attorney who unsuccessfully opposes a motion to

compel further responses to discovery, “unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” In addition, a Court may impose monetary sanctions for misuse of the discovery process (Code Civ. Proc., § 2023.010.)

The Plaintiff’s discovery requests are reasonable and limited in time and scope. Defendant represented that it would produce responsive documents and interrogatory answers pursuant to a protective order or Beldare-West procedure. Plaintiff attempted to procure a protective order but Defendant has been non-responsive to that request. Accordingly, sanctions are warranted.

Plaintiff’s counsel seeks \$15,985.80 (\$7,992.90 per motion) based on 21.4 hours of work at \$747.00 per hour. The Court finds that while Defendant was arguably substantially justified in raising concerns about privacy issues, it was not substantially justified in asserting certain objections or in failing to work with Plaintiff to obtain an agreeable protective order. However, initially the Court finds the requested hourly rate for attorney’s fees is excessive as the going rate in the local market is \$300 per hour. Additionally the Court reduces the allowable hours as appropriate for sanctions to 2.8 hours for motion preparation, 2.0 hours for separate statement preparation, and .5 hours for declaration preparation, for a total sanction of award of 5.3 hours. Accordingly, the Court **grants Plaintiff’s motion for sanctions in the amount of \$1,590.00** (i.e., 5.3 hours at \$300 per hour).

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to submit a formal Order pursuant to Rule of Court 3.1312 in compliance with this Ruling.

ROUDEBUSH v ROUDEBUSH

23CV46676

PLAINTIFF'S MOTION FOR ORDER APPROVING SETTLEMENT AGREEMENT

This case involves a partition of several real properties owned by Linda Roudebush as Trustee of the Linda Roudebush Trust and as an individual ("Linda") and her sister, defendant Lisa A. Roudebush (hereinafter, "Lisa").¹ The Court entered default against Lisa on September 26, 2023, and an interlocutory judgment upon a prove-up hearing was ordered for April 19, 2024. Michael Wright was appointed referee.

Now before the Court is Linda's motion to approve a settlement agreement, including a request that the Court retain jurisdiction to enforce the settlement agreement pursuant to Code of Civil Procedure ("CCP") section 664.6. At the outset the Court brings Plaintiff's attention to fact that the Notice of Motion fails to include the following mandatory language:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p m the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p m the court day preceding the hearing, no hearing will and the tentative ruling shall become the ruling of the court.

Failure to include this language in the notice may be a basis for the Court to deny the motion.

The Court has grounds to deny the Motion based on the failure to include this language. However, in the interests of justice, the Court will rule on the motion; the parties are cautioned that the local rule has been in effect since 1/1/18 and they should not expect any such leniency for any future motions.

¹ Given the Plaintiffs and the Defendant share a common last name, the Court will refer to the parties by their first names. No disrespect is intended.